

		693; <i>Rice v. Downs</i> (2016) 248 Cal.App.4th 175, 188.) “[E]ven under broad arbitration clauses..., [the complaint’s] factual allegations must at least ‘ “touch matters” covered by the contract containing the arbitration clause.’ ” (<i>Jackson v. Amazon.com, Inc.</i> at p. 1101.) In other words, “[a]n arbitration agreement is tied to the underlying contract containing it, and applies ‘only where a dispute has its real source in the contract. The object of an arbitration clause is to implement a contract, not to transcend it.’ (<i>Litton Financial Printing Div. v. NLRB</i> (1991) 501 U.S. 190, 205, 111 S.Ct. 2215, 115 L.Ed.2d 177 (<i>Litton</i>).) No authority permits sending a matter to arbitration simply because the same parties agreed to arbitrate a different matter.” (<i>Moritz v. Universal City Studios LLC</i> (2020) 54 Cal.App.5th 238, 246; see <i>Johnson v. Walmart Inc., supra</i>, 57 F.4th at pp. 680-682; see also <i>id.</i> at p. 681 [“As ‘arbitration is a matter of contract[,] ... a party cannot be required to submit to arbitration any dispute which he has not agreed so to submit.’ ”].) This action does not arise out of or have anything to do with plaintiff’s purchase of the 2023 Rivian R1T or the relationship between the parties that was created by the purchase agreement for that vehicle. (Compare Ameripour Decl. at Ex. 1, with Compl., in passim.) It arises out of plaintiff’s lease of an entirely different vehicle two years later and the relationship created by this separate, independent transaction. (See Compl. ¶ 9; see also <i>id.</i>, in passim.) Thus, the arbitration provision in the purchase agreement does not apply to the lease of the vehicle at issue in this case, and nothing shows plaintiff ever agreed to arbitrate any disputes arising out of this transaction. (See <i>Moritz v. Universal City Studios LLC, supra</i>, 54 Cal.App.5th at pp. 246-248; <i>Jackson v. Amazon.com, Inc., supra</i>, 65 F.4th at p. 1101; see also <i>Johnson v. Walmart Inc., supra</i>, 57 F.4th at pp. 680-682.) Defendant shall give notice.
208	Holden vs. Royale Management Group, LLC 2026-01539035	Motion Granting Relief from Courts Defendant/respondent Royale Management Group, LLC’s motion for relief from the court’s 6/1/26 decision entered after an uncontested trial is DENIED. (See Code Civ. Proc., § 437, subd. (b).) This motion has been brought pursuant to the discretionary relief provision of Code of Civil Procedure section 473, subdivision (b) (section 473(b)).

Defendant has failed to demonstrate the 6/1/26 uncontested decision was the result of “excusable” mistake, inadvertence, surprise, or neglect.

For discretionary relief, the subject decision must be the result of a mistake, inadvertence, surprise, and/or neglect that is “excusable.” (Code Civ. Proc., § 473, subd. (b); see *Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249, 258 (*Zamora*); *Jackson v. Bank of America* (1983) 141 Cal.App.3d 55, 58 [for discretionary relief, “ ‘[n]either mistake, inadvertence, or neglect will warrant relief unless upon consideration of all the evidence it is found to be of the excusable variety’ ”].) “The standard is whether ‘ ‘a reasonably prudent person under the same or similar circumstances’ might have made the same error.’” (*Bettencourt v. Los Rios Community College Dist.* (1986) 42 Cal.3d 270, 276, 228 Cal.Rptr. 190, 721 P.2d 71.)” (*Solv-All v. Superior Court* (2005) 131 Cal.App.4th 1003, 1007.)

Here, RMG claims that its failure to appear at trial on 6/1/26 was due to its counsel’s “inadvertent failure to enter the trial date into the firm’s calendaring system after the date was timely transmitted internally for calendaring, and not from any fault of RMG.” (Ntc. of Mtn., p. 2.) RMG’s counsel explains that their office manager inadvertently failed to enter the trial date into the firm calendar, and that as a result, no attorney at the firm was alerted to go and appear. (Brunner Decl. ¶¶ 2-4, 6; Reeder Decl. ¶¶ 5-7.)

But plaintiff/petitioner David W. Holden’s evidence shows that on the evening of Friday 5/29/26—i.e., the last business day before trial on 6/1/26—plaintiff’s counsel emailed defense counsel with plaintiff’s “witness list” and “exhibit list” for trial, both of which inconspicuously listed a trial date of 6/1/26 on their cover pages, which should have alerted defense counsel of the trial on the following Monday. (Furcolo Decl. ¶¶ 3-4, Exs. D-E.) Defense counsel, however, has entirely failed to explain how they missed this. Sure, plaintiff’s counsel served these trial documents via email to attorney Duncan McCreary at Reeder McCreary, LLP—i.e., RMG’s primary and only attorney of record throughout this case from its first appearance in this matter through that date (e.g., ROA Nos. 33, 35, 45; Holden Decl. ¶ 5, Ex. B)—who had apparently just left the firm. (See Reply at p. 3:12-13.) But as RMG’s counsel admits, a different attorney at the firm (now apparently known as Reeder, LLP), partner Christopher Reeder, “who was receiving Mr. McCreary’s emails” following Mr. McCreary’s departure, received and saw this email within ten

		minutes of service. (See Reply at p. 3:15-19; Furcolo Decl. ¶ 4, Ex. E [Mr. Reeder’s response to the 5/29/26 email sent ten minutes later].) Any competent litigation attorney (especially a managing partner of a litigation firm, see Reeder Decl. ¶ 1) knows or should know that a “witness list” and “exhibit list” are typically served shortly before trial. This should have alerted Mr. Reeder that a trial date was imminent, and he could have checked the trial date simply by taking a look at the documents. But Mr. Reeder has entirely failed to explain how he missed the trial date listed on the witness list and exhibit list served the day before trial, or, if he did not bother to open the attachments in the first place, why he neglected to do so or how that neglect is “excusable” under the circumstances, particularly given the nature of the (trial) documents and the fact that Mr. McCreary had just departed the firm. There is also no explanation as to how or in what manner RMG’s counsel discovered their failure to appear at trial. This complete lack of information as to whether, why, and how Mr. Reeder missed the trial date on the cover pages of the witness list and exhibit list served the day before trial, and how and when counsel even learned of their failure to appear, renders RMG’s showing insufficient for discretionary relief. (See <i>Younessi v. Woolf</i> (2016) 244 Cal.App.4th 1137, 1146-1147; see also <i>Tackett v. City of Huntington Beach</i> (1994) 22 Cal.App.4th 60, 66 [“It is impossible for a court to characterize neglect as excusable when the attorney has not described what the neglect was.”].) Plaintiff’s request for judicial notice is GRANTED. (See Evid. Code § 452, subd. (d); see also <i>Kilroy v. State</i> (2004) 119 Cal.App.4th 140, 146-147.) Defendant shall give notice.
214	Wei vs. Sarkis 2025-01509812	Motion to Set Aside/Vacate Default Cross-defendant Yilu Amanda Wei’s motion to set aside the default entered on the cross-complaint on February 20, 2026 is DENIED. Wei has failed to meet her burden showing she did not receive proper notice of the service of the cross-complaint. See Code of Civil Procedure § 473.5. See also <i>Anastos v. Lee</i> (2004) 118 Cal.App.4th 1314. Wei to give notice.